

The Executive - The Foundation Track

Chapter F1.6 — From Zero: The President, the Vice-President, the Prime Minister, the Council of Ministers, and Who Actually Signs Your Ministry's Notifications

Module	Foundation Layer — Module 1 — Indian Polity, Constitution and Governance
Chapter	Chapter F1.6
Topic	Official syllabus head 1 — Indian Polity, Constitution and Governance
Version	v1.0
Compiled	13 August 2026
Exam stage	Recruitment Test (RT)

NOTE · HOW TO USE THIS DOCUMENT

The chapter about the branch that appoints the Central Board of Trustees of EPFO, notifies the Rules under the EPF Act and approves the interest rate you credit each year. It works through the Union Executive - the President as head of State with a defined pattern of election, tenure, powers and privileges; the Vice-President as second office of State and Chairman of the Rajya Sabha; the Prime Minister as head of Government and the real executive power; the Council of Ministers in its three-tier structure with the Union Cabinet at its head; and the Attorney General as the Government's principal legal adviser. It draws the crucial distinction between the FORMAL executive (President) and the REAL executive (PM and Cabinet), and the constitutional convention under Article 74 that binds the President to ministerial advice with the qualified exception introduced by the 44th Amendment. It closes on the analogous State Executive - Governor, CM, State Council of Ministers, Advocate General - and on where an executive notification affecting EPFO comes from in this chain. Study time 3 hours.

This is the FOUNDATION layer. Article numbers, election procedures, tenure and powers of the Union Executive are settled by the Constitution and are as at August 2026. Names of current office-holders change and are marked CONFIRM where they appear. Where a convention interacts with an article (e.g. the President's assent to Bills), the interaction is explained rather than reduced to a rule.

Table of Contents

0. Formal Executive and Real Executive	3
1. Session 1 - The President ★★★★★	4
1.1 Election and tenure	4
2. Session 2 - The Vice-President ★★★★★☆	8
3. Session 3 - Prime Minister and Council of Ministers ★★★★★	10
4. Session 4 - The State Executive ★★★★★☆	12
5. Session 5 - The Law Officers ★★☆☆☆	14
6. Graded Practice - 40 Questions ★★★★★	16
6.1 Level 1 - Recognition	16
6.2 Level 2 - Understanding	17
6.3 Level 3 - Recruitment Test standard	18
7. Answers and Explanations	19
7.1 Level 1	19
7.2 Level 2	20
7.3 Level 3	21
8. One-Minute Revision	22
9. Five-Minute Wall Sheet	25

0. Formal Executive and Real Executive

In India the President signs, but the Prime Minister decides. Understanding this dual structure is understanding the whole executive.

WHY THIS EXISTS · THE WESTMINSTER PUZZLE INDIA ADOPTED

Every constitutional democracy has to answer one question: **who exercises executive power?** Two broad answers exist.

Presidential systems (USA, France for domestic policy): the popularly elected President IS the head of Government. He appoints his Cabinet at will, they answer to him, and Parliament holds hearings but cannot dismiss the Cabinet by a vote. The **person and the power are aligned**.

Parliamentary systems (UK, most Commonwealth countries, India): the head of Government is the leader of the largest party in the popular chamber, and he acts on behalf of a **separate** head of State (Monarch or President) who is ceremonial. The **person of the head of State and the power to exercise executive functions are separated**.

India chose the parliamentary answer. Article 53 vests executive power in the **President**, but Article 74 states that the President "**shall act in accordance with**" the advice of the Council of Ministers headed by the Prime Minister. So constitutional executive power is formally the President's; effective executive power is the PM's and Cabinet's.

Three consequences for how this chapter reads:

- 1 The President and the Prime Minister are **BOTH constitutional executives**, but at different levels of a two-tier structure. Do not think of one as "real" and the other as "not real" - they are both real, doing different things
- 2 The **conventions** governing the President's exercise of discretion matter enormously in practice, and constitutional cases (SR Bommai 1994 on President's Rule, Nabam Rebia 2016 on Governor's discretion) have crystallised many of these
- 3 The **cabinet** system as we know it - Cabinet Ministers, MoS, and Deputy Ministers - is largely a matter of convention plus statute, not the constitutional text. The text refers to a Council of Ministers, headed by a PM, and leaves the structure inside that Council to be worked out

STUDY SESSION · CHAPTER F1.6 - THE FIVE SESSIONS

- 1 **Session 1 - The President:** election, powers, and Article 74 (Section 1)
- 2 **Session 2 - The Vice-President** and the offices connected to Parliament (Section 2)
- 3 **Session 3 - The Prime Minister and Council of Ministers** (Section 3)
- 4 **Session 4 - The State Executive:** Governor and CM (Section 4)
- 5 **Session 5 - The Attorney General and Advocate General** (Section 5)

Then **40 graded questions**. Budget **four sessions**, about **a day and a half**.

1. Session 1 - The President ★★★★★

1.1 Election and tenure

MUST MASTER · ARTICLE 54-58 - ELECTING THE PRESIDENT

Article 54 - the Electoral College. The President is elected by an **electoral college** consisting of:

- 1 Elected members of both Houses of Parliament (elected Rajya Sabha members + all Lok Sabha members)
- 2 Elected members of the Legislative Assemblies of the States (**and the two UTs with legislatures - Delhi and Puducherry, added by the 70th Amendment 1992**)

Nominated members do NOT vote: neither the 12 nominated to the Rajya Sabha, nor nominated members of State Assemblies, nor members of Legislative Councils (bicameral States).

Article 55 - Manner of Election. By **PROPORTIONAL REPRESENTATION with SINGLE TRANSFERABLE VOTE**, secret ballot. **The value of each vote is calculated** to ensure:

- 1 **Uniformity in the scale of representation among States** - accounting for population differences
- 2 **Parity between the votes of MPs and MLAs collectively** - ensuring Parliament as a whole and State Legislatures as a whole have equal weight

Value of a State MLA's vote = (State population per 1971 census) / (Number of elected MLAs × 1000), rounded
Value of an MP's vote = (Total value of all MLAs' votes) / (Total number of elected MPs), rounded

The **1971 census is used** for this calculation until the first census after 2026 - **same freeze rule as for Lok Sabha seats**. This is a common examination point.

Article 56 - Term of Office. 5 years from the date of assuming office. **Re-eligible** for any number of terms (no term limit, unlike US which caps at 2). But convention has settled at typically two terms maximum (Rajendra Prasad served two full terms, unique).

Article 57 - Eligibility for re-election. No bar.

Article 58 - Qualifications for election.

- 1 Citizen of India
- 2 **Completed 35 years of age**
- 3 Qualified for election as a member of the Lok Sabha
- 4 Not holding any **office of profit** under Government (though the President, VP, Governors, Ministers of Union or State are not treated as office of profit)

Article 59 - Conditions of the office.

- 1 Not a member of either House of Parliament or any State Legislature; if such a member, vacates on becoming President
- 2 Not to hold any other office of profit
- 3 Entitled to official residence rent-free
- 4 Emoluments and allowances as determined by Parliament (currently the Presidential emoluments are fixed by statute)
- 5 Emoluments cannot be diminished during term of office

MUST MASTER · POWERS OF THE PRESIDENT - BY CATEGORY

The President's powers, though formally vast, are almost all exercised on ministerial advice. Learn them as five categories.

1. EXECUTIVE POWERS. Under **Article 53**, executive power of the Union is vested in the President and exercised by him directly or through officers subordinate to him. This includes:

- 1 Appointment of the **Prime Minister** (Article 75(1)) - discretion in rare hung-Parliament situations
 - 2 Appointment of **other Ministers** on PM's advice
 - 3 Appointment of the **Attorney General, CAG, Chief Justice and other Judges of SC/HC, State Governors, Chairman and members of UPSC, Chief Election Commissioner and other Election Commissioners**
 - 4 Administration of Union Territories
- 2. LEGISLATIVE POWERS.** In relation to Parliament:
- 1 **Summoning, proroguing** both Houses; **dissolving the Lok Sabha** (Art 85)
 - 2 **Addressing Parliament** at the first sitting after each general election and at the first session each year
 - 3 **Nominating 12 members** to the Rajya Sabha under Article 80(1)
 - 4 **Assenting to Bills** (Article 111) - may withhold; may return (not Money Bills)
 - 5 **Promulgating Ordinances** under Article 123 when Parliament is not in session
 - 6 **Laying reports before Parliament** - Finance Commission, UPSC, CAG, and others
- 3. FINANCIAL POWERS.**
- 1 **Money Bills** cannot be introduced without his **recommendation** (Article 117(1))
 - 2 **Contingency Fund** at his disposal (Article 267)
 - 3 Recommendation required for **Demands for Grants**
- 4. JUDICIAL POWERS - Article 72 pardoning power.** Grant **pardon, reprieve, respite, remission or commutation** in all cases where the punishment or sentence is:
- 1 By a Court Martial
 - 2 For an offence under a Union law
 - 3 **A sentence of DEATH** (concurrent with Governor's power)
- The pardoning power extends to all offences except that **the Governor cannot pardon a death sentence** - only the President can. **This is the sharpest distinction between Article 72 and Article 161** and is a favourite examination point.
- 5. EMERGENCY POWERS - three types.**
- 1 **National Emergency (Article 352)** - war, external aggression, or armed rebellion
 - 2 **State Emergency / President's Rule (Article 356)** - failure of constitutional machinery in a State
 - 3 **Financial Emergency (Article 360)** - never actually proclaimed
- Chapter F1.12 covers Emergencies in detail; here, note that these are **POWERS OF THE PRESIDENT**, exercised on Cabinet's advice (which he can question once, but not indefinitely).

MUST MASTER · ARTICLE 74 - THE BINDING CONSTITUTIONAL CONVENTION

Article 74(1): "There shall be a Council of Ministers with the Prime Minister at the head TO AID AND ADVISE THE PRESIDENT who shall, in the exercise of his functions, ACT IN ACCORDANCE WITH SUCH ADVICE"

This is the single most important sentence about the executive. It converts the President's formal power into effective power exercised on advice. But it has one qualification that matters, added by the **44th Amendment 1978**:

"Provided that the President may require the Council of Ministers to RECONSIDER such advice, either generally or otherwise, and the President shall act in accordance with the advice tendered AFTER SUCH RECONSIDERATION."

So the President's discretion under Article 74 is limited to ONE thing: sending the advice back once for reconsideration. If the Council sticks to its advice, the President must act on it. This is the constitutional codification of a convention that already existed, and it was inserted to reverse the pre-Emergency doctrine of some discretion.

Article 74(2): the advice tendered to the President SHALL NOT BE INQUIRED INTO in any court. So while the President's decisions are reviewable, the ministerial advice on which they rest is not disclosable in court. This protects confidentiality of executive decision-making.

Three practical situations where discretion still operates, despite Article 74:

- 1 **Appointment of the PM in a hung Parliament** - if no party has a clear majority, the President must exercise judgment on who to invite
- 2 **Dismissal of a PM who has lost the confidence** but refuses to resign
- 3 **Assent to Bills** - the President can WITHHOLD assent (rare) or RETURN a Bill for reconsideration (once); on re-passage, must assent

But these are rare, and the general rule is that the President ACTS ON MINISTERIAL ADVICE. The paper often tests this rule by giving fact patterns that suggest presidential discretion where none exists.

KNOW · IMPEACHMENT OF THE PRESIDENT - ARTICLE 61

The President may be removed by **impeachment for VIOLATION OF THE CONSTITUTION** (only ground).

Process:

- 1 **Charges preferred by either House** with at least **1/4 members' signature** on the charge notice, with 14 days' notice
- 2 Resolution requires **2/3 majority of the TOTAL MEMBERSHIP** of the House proposing (not just present and voting) - a HIGH bar
- 3 Sent to other House, which **investigates** (or has it investigated) and passes a similar 2/3 resolution
- 4 **Nominated members of the Rajya Sabha CAN participate** in impeachment (though they did not participate in the President's election)
- 5 **Elected members of State Assemblies do NOT participate** (though they participated in the election)

No President has been impeached in Indian history. The mechanism exists but is rarely close to being invoked. Impeachment questions test whether candidates know the mechanics and the **ONLY** ground (violation of Constitution).

CHECK YOURSELF · SESSION 1

- 1 Name the constituents of the electoral college for the President's election
- 2 Which two categories of nominated members do NOT participate in the election?
- 3 What is the manner of election, and which census year is used until the first census after 2026?
- 4 State the qualifications for election under Article 58
- 5 Name five categories of the President's powers
- 6 Distinguish Article 72 pardoning power from Article 161. Which sentence type can only the President pardon?
- 7 State Article 74(1) verbatim and the 44th Amendment proviso
- 8 Name three situations where the President may exercise real discretion
- 9 What is the ONLY ground for impeachment, and what is the special majority required?
- 10 Do nominated Rajya Sabha members participate in impeachment?

2. Session 2 - The Vice-President ★★★★★

MUST MASTER · ARTICLES 63-71 - THE SECOND OFFICE OF STATE

- 1 **Article 63** - There **shall be** a Vice-President of India. The office is mandatory, not optional
- 2 **Election** - by an **electoral college consisting of the members of BOTH HOUSES OF PARLIAMENT ONLY**, by proportional representation with the single transferable vote, by secret ballot
- 3 **Tenure** - **5 years**, re-eligible without limit
- 4 **Qualifications** - citizen of India, **completed 35 years**, and **qualified for election as a member of the RAJYA SABHA** (not the Lok Sabha)
- 5 **Removal** - by a resolution of the **Rajya Sabha passed by a majority of ALL THEN MEMBERS**, and **agreed to by the Lok Sabha. 14 days' notice** required

THE THREE DIFFERENCES FROM THE PRESIDENT'S ELECTION - all examinable:

- 1 **Electoral college**: the Vice-President's college is **Parliament only**; the President's includes **State Legislative Assemblies**. So the States have no say in electing the Vice-President
- 2 **Nominated members VOTE in the Vice-President's election**. They do not vote in the President's. This is a genuine and frequently tested distinction
- 3 **Qualification reference**: Vice-President must be qualified for the **Rajya Sabha** (age 30 threshold for RS membership, though the VP's own minimum is 35); the President must be qualified for the **Lok Sabha**

Functions:

- 1 **Ex officio CHAIRMAN of the Rajya Sabha** (Article 64) - and as established in F1.5, **he is NOT a member of the House he chairs**
- 2 **Acts as President** during a vacancy caused by death, resignation, removal or otherwise, **until a new President is elected** - and this must happen **within 6 months** of the vacancy arising
- 3 **Discharges the President's functions** when the President is unable to do so due to absence, illness or any other cause

One important point about the VP acting as President: while so acting, he does **NOT** perform the Rajya Sabha Chairman's duties, and he receives the **President's emoluments**, not the Chairman's. The Deputy Chairman presides over the Rajya Sabha in the interim.

COMMON UPSC TRAP · PRESIDENT VS VICE-PRESIDENT - THE COMPARISON TABLE

Feature	President	Vice-President
Electoral college	MPs (elected) + elected MLAs of States and Delhi/Puducherry	Both Houses of Parliament ONLY
Nominated members vote?	NO	YES
Minimum age	35	35
Qualified for election as member of	Lok Sabha	Rajya Sabha
Tenure	5 years	5 years
Removal ground	Violation of the Constitution (impeachment, Art 61)	No ground specified - resolution of RS agreed by LS
Removal majority	2/3 of TOTAL membership of each House	Majority of all then members of RS + agreement of LS
Presides over	Nothing (head of State)	Rajya Sabha, ex officio

The most tested single fact in this table: NOMINATED MEMBERS VOTE FOR THE VICE-PRESIDENT BUT NOT FOR THE PRESIDENT. A stem asking which election nominated members participate in has the Vice-President as the answer.

CHECK YOURSELF · SESSION 2

- 1 Who constitutes the electoral college for the Vice-President?
- 2 Do nominated members vote in the VP's election? In the President's?
- 3 For which House must the VP be qualified as a member?
- 4 State the removal procedure and note the absence of a specified ground
- 5 What happens to the Rajya Sabha chairmanship when the VP acts as President?
- 6 Within what period must a new President be elected after a vacancy?

3. Session 3 - Prime Minister and Council of Ministers ★★★★★

MUST MASTER · ARTICLE 75 - THE PRIME MINISTER AND THE MINISTRY

- 1 **Article 75(1)** - The **Prime Minister shall be APPOINTED BY THE PRESIDENT**, and the other Ministers shall be appointed by the President **on the advice of the Prime Minister**
- 2 **Article 75(2)** - Ministers **hold office during the pleasure of the President** (which in practice means during the pleasure of the PM, since the President acts on advice)
- 3 **Article 75(3) - THE COUNCIL OF MINISTERS SHALL BE COLLECTIVELY RESPONSIBLE TO THE HOUSE OF THE PEOPLE.** This is the foundation of parliamentary accountability - the Government stands or falls together in the **Lok Sabha**, not the Rajya Sabha
- 4 **Article 75(4)** - Ministers take the oath prescribed in the Third Schedule
- 5 **Article 75(5) - A Minister who is not a member of either House for SIX CONSECUTIVE MONTHS ceases to be a Minister.** So a Minister must get elected (or nominated) to one House within 6 months
- 6 **Article 75(1A)** - inserted by the **91st Amendment (2003): the total number of Ministers, including the Prime Minister, shall NOT EXCEED 15 PER CENT of the total number of members of the Lok Sabha**

Article 75(1A) is a frequently tested figure: 15 per cent, inserted by the 91st Amendment 2003. The same amendment applied a parallel cap on State Councils of Ministers (Article 164(1A)), with a minimum of 12 Ministers for smaller States.

The three-tier structure of the Council of Ministers - a matter of convention and the Government of India (Allocation of Business) Rules, not of constitutional text:

- 1 **CABINET MINISTERS** - heads of ministries, members of the Cabinet, participate in Cabinet meetings and collective decision-making
- 2 **MINISTERS OF STATE (MoS)** - either given independent charge of a ministry (then they function like Cabinet Ministers for that ministry but do not attend Cabinet as of right), or attached to a Cabinet Minister
- 3 **DEPUTY MINISTERS** - assist Ministers; not commonly appointed in recent Governments

The UNION CABINET is the inner core. The Constitution mentions the **Council of Ministers** (Article 74, 75), not the "Cabinet" - the word "Cabinet" appears in the Constitution only once, in **Article 352** (added by the 44th Amendment), requiring the Cabinet's written recommendation before a National Emergency is proclaimed. **This is an excellent examination point: the Cabinet is mentioned only in Article 352.**

KNOW · POWERS AND POSITION OF THE PRIME MINISTER

The PM's authority derives from three sources: his position as leader of the majority party, his role as head of the Council of Ministers, and his relationship to the President.

In relation to the Council of Ministers:

- 1 **Recommends** the appointment and removal of Ministers
- 2 **Allocates portfolios** and can reshuffle them
- 3 **Presides over Cabinet meetings** and controls the agenda
- 4 **His resignation dissolves the whole Council** - a unique power, since no other Minister's resignation has that effect

In relation to the President:

- 1 **Principal channel of communication** between the Council of Ministers and the President
- 2 Advises the President on **dissolution of the Lok Sabha**
- 3 Advises on appointments (though many appointments involve statutory consultation processes)

In relation to Parliament:

- 1 **Leader of the House** (in whichever House he sits)
- 2 **Announces Government policy** on the floor

In relation to the nation:

- 1 **Chairman of NITI Aayog**, the National Development Council, the National Integration Council, the Inter-State Council, and the National Water Resources Council
- 2 **Chief spokesman** of the Government

A point relevant to your own organisation. The **Union Minister of Labour and Employment**, a Cabinet Minister, chairs EPFO's **Central Board of Trustees**. So the Cabinet Minister who sits in the Union Cabinet under the PM's chairmanship also chairs the tripartite board that governs your organisation and recommends the interest rate credited to members' accounts. **The chain from the Cabinet to your annual interest declaration is that short.**

CHECK YOURSELF · SESSION 3

- 1 State Article 75(1), (2), (3) and (5)
- 2 What does Article 75(1A) provide, and which amendment inserted it?
- 3 Name the three tiers of the Council of Ministers
- 4 In how many places, and where, does the Constitution mention the "Cabinet"?
- 5 Why does the PM's resignation dissolve the whole Council?
- 6 Name four bodies the PM chairs
- 7 Who chairs EPFO's Central Board of Trustees, and how does that connect to the Cabinet?

4. Session 4 - The State Executive ★★★★★

MUST MASTER · THE GOVERNOR - ARTICLES 153-162

The State Executive mirrors the Union structure, with the **Governor** as formal head and the **Chief Minister** as real head.

- 1 **Article 153** - There shall be a Governor for each State. **One person may be appointed Governor of two or more States** (7th Amendment 1956)
- 2 **Appointment - Article 155: APPOINTED BY THE PRESIDENT by warrant under his hand and seal. NOT ELECTED** - this is the fundamental difference from the President
- 3 **Tenure - Article 156: 5 years**, but **holds office during the pleasure of the President**. So the tenure is not secure in the way the President's is
- 4 **Qualifications - Article 157**: citizen of India, **completed 35 years of age**
- 5 **Conditions - Article 158**: not a member of Parliament or a State Legislature; no other office of profit

The Governor's powers mirror the President's, with three important differences:

- 1 **Article 161 pardoning power** - the Governor may grant pardons, reprieves, respites, remissions and commutations for offences against State laws - **BUT CANNOT PARDON A DEATH SENTENCE** and **cannot pardon in respect of Court Martial sentences**. Only the President can do both
- 2 **Article 200 - assent to State Bills** - the Governor may assent, withhold assent, return the Bill (except a Money Bill), or **RESERVE THE BILL FOR THE PRESIDENT'S CONSIDERATION**. That last option is the Governor's distinctive power and has no Presidential equivalent
- 3 **Article 356 recommendation** - the Governor reports to the President that the constitutional machinery in the State has failed, which triggers President's Rule. This is the Governor's most politically consequential function, and it has been heavily litigated

The Governor's DISCRETION - Article 163. Unlike Article 74's near-absolute binding of the President, **Article 163(1)** says the Governor acts on ministerial advice "**except in so far as he is by or under this Constitution required to exercise his functions or any of them in his discretion.**" So the Governor has **express constitutional discretion** in defined situations, which the President does not.

Situations of Governor's discretion:

- 1 **Reserving a Bill for the President** under Article 200
- 2 **Recommending President's Rule** under Article 356
- 3 **Appointing the Chief Minister** where no party has a clear majority
- 4 **Dismissing a Ministry** that has lost confidence and refuses to resign
- 5 **Seeking information** from the Chief Minister under Article 167
- 6 Functions as **administrator of an adjoining Union Territory** where so appointed

SR Bommai v Union of India (1994) is the landmark case constraining Article 356: the Supreme Court held that **the Governor's satisfaction is subject to judicial review**, that the **floor of the House is the only proper test of majority**, and that **Article 356 cannot be used for political advantage**. **Nabam Rebia (2016)** further constrained the Governor's discretion in summoning and dissolving Assemblies.

KNOW · THE CHIEF MINISTER AND STATE COUNCIL OF MINISTERS - ARTICLES 163-164

- 1 **Article 164(1)** - The **Chief Minister shall be appointed by the Governor**, and other Ministers appointed by the Governor on the CM's advice
- 2 **Article 164(1A)** - inserted by the **91st Amendment 2003**: total Ministers including the CM **shall not exceed 15 per cent of the total members of the Legislative Assembly**, subject to a **MINIMUM OF 12** (so small States are not left with 2 or 3 Ministers)
- 3 **Article 164(2)** - **Council of Ministers collectively responsible to the LEGISLATIVE ASSEMBLY** of the State
- 4 **Article 164(4)** - a Minister not a member of the State Legislature for **6 consecutive months** ceases to be a Minister

Special provision - Article 164(1) proviso: in the States of **Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha** there shall be a **Minister in charge of TRIBAL WELFARE**, who may in addition be in charge of the welfare of SCs and OBCs. **The four States named are examinable**; the provision recognises the substantial tribal populations in those States.

CHECK YOURSELF · SESSION 4

- 1 How is the Governor appointed, and what is his tenure and its condition?
- 2 State three differences between the Governor's and the President's powers
- 3 Why can the Governor not pardon a death sentence?
- 4 What is the Governor's distinctive option under Article 200?
- 5 State Article 163(1) and explain why the Governor's discretion is wider than the President's
- 6 Name six situations of the Governor's discretion
- 7 What did SR Bommai 1994 decide about Article 356?
- 8 State Article 164(1A) and the minimum number of Ministers
- 9 Which four States must have a Minister for Tribal Welfare?

5. Session 5 - The Law Officers ★★★★★

MUST MASTER · ATTORNEY GENERAL AND SOLICITOR GENERAL

1 Article 76 - the ATTORNEY GENERAL FOR INDIA

2 Appointed by the PRESIDENT

3 **Qualification:** must be a person **qualified to be appointed a JUDGE OF THE SUPREME COURT** - so at least 5 years as a High Court Judge, or 10 years as a High Court advocate, or a distinguished jurist

4 **Functions:** to give advice to the Government of India on legal matters; to perform such other duties of a legal character as are assigned; to discharge the functions conferred by the Constitution or any law

5 **Right of audience in ALL COURTS in India** (Article 76(3)) - and the **right to speak in and take part in the proceedings of both Houses of Parliament and any joint sitting and any committee** of which he may be named a member, **BUT WITHOUT A RIGHT TO VOTE** (Article 88)

6 **Tenure:** not fixed by the Constitution; holds office during the President's pleasure

7 **NOT a member of the Cabinet** - he is the Government's lawyer, not a Minister

8 **May engage in private practice**, but not against the Government of India

The Solicitor General and Additional Solicitors General are not constitutional offices - they are appointed to assist the Attorney General, under statutory or executive arrangements. **A question asking which of these is a constitutional office has the Attorney General as the only correct answer among them.**

1 Article 165 - the ADVOCATE GENERAL FOR A STATE

2 The State analogue of the Attorney General

3 Appointed by the GOVERNOR

4 **Qualification:** must be qualified to be appointed a **Judge of a HIGH COURT**

5 Right of audience in all courts within the State; right to speak in the State Legislature without voting (Article 177)

The parallel is exact: AG appointed by President, qualified for the Supreme Court, right of audience nationally, speaks in Parliament without voting. AdvG appointed by Governor, qualified for a High Court, right of audience in the State, speaks in the State Legislature without voting.

MUST MASTER · WHERE AN EPFO NOTIFICATION ACTUALLY COMES FROM

This is the chapter's connection to your desk, and it is worth tracing exactly.

Suppose the wage ceiling under the EPF Scheme is to be revised from Rs 15,000. The chain runs:

- 1 **The Central Board of Trustees** (chaired by the **Union Minister of Labour and Employment**, a Cabinet Minister) considers and **recommends** the change
- 2 The **Ministry of Labour and Employment** processes it. As a matter of the **Government of India (Allocation of Business) Rules**, the subject falls to that Ministry
- 3 Where the change requires **Cabinet approval** (because of financial implications or policy significance), it goes to the **Union Cabinet**, chaired by the **Prime Minister**
- 4 The **Ministry of Finance** is consulted where there is an expenditure implication - for example, the Central Government's 1.16 per cent contribution to EPS
- 5 A **notification** is issued in the name of the **President** (because Article 77 requires all executive action of the Government of India to be expressed to be taken in the name of the President), signed by the authorised officer of the Ministry
- 6 It is **published in the Gazette of India**, and takes effect from the date specified

Three things this trace teaches:

- 1 **Article 77** - all executive action is expressed in the President's name, and the President's own signature is not required for every notification; **authentication rules** made under Article 77(2) determine who may sign. So a Joint Secretary's signature on a Gazette notification is constitutionally the President's action
- 2 **The Cabinet is the effective decision-maker** for anything of policy significance, notwithstanding that the President's name appears on the instrument
- 3 **The interest rate you credit each year** follows the same path: the **CBT recommends**, the **Ministry of Labour** processes, the **Ministry of Finance** concurs, and the rate is then notified. **The 8.25 per cent for FY 2025-26 arrived exactly this way**

So the executive chapter is not abstract for you. Every rate, ceiling and scheme parameter in Modules 2 and 3 was set by this machinery, and the reason you must know that the President acts on ministerial advice is that **you will one day explain to an employer that a Gazette notification issued in the President's name is binding on him.**

CHECK YOURSELF · SESSION 5

- 1 Who appoints the Attorney General, and what qualification is required?
- 2 What are the AG's rights in Parliament, and what right does he NOT have?
- 3 Is the AG a member of the Cabinet? May he practise privately?
- 4 Is the Solicitor General a constitutional office?
- 5 State the Advocate General parallel for a State
- 6 What does Article 77 require of executive action, and who may sign a notification?
- 7 Trace the chain by which the EPF interest rate is fixed

6. Graded Practice - 40 Questions ★★★★★

6.1 Level 1 - Recognition

Q. 1. Executive power of the Union is vested in the President by

(a) Article 52 (b) Article 53 (c) Article 74 (d) Article 75

Q. 2. The electoral college for the President's election consists of

(a) all members of Parliament only (b) elected members of both Houses and elected members of State Legislative Assemblies including Delhi and Puducherry (c) all MPs and all MLAs including nominated members (d) members of the Lok Sabha only

Q. 3. The census used to calculate the value of votes in the Presidential election is that of

(a) 1951 (b) 1971 (c) 1991 (d) 2011

Q. 4. The minimum age for election as President is

(a) 25 (b) 30 (c) 35 (d) 40

Q. 5. The term of the President's office is

(a) 4 years (b) 5 years (c) 6 years (d) 7 years

Q. 6. The pardoning power of the President is conferred by

(a) Article 61 (b) Article 72 (c) Article 74 (d) Article 161

Q. 7. The pardoning power of the Governor is conferred by

(a) Article 72 (b) Article 156 (c) Article 161 (d) Article 200

Q. 8. The provision that the President shall act in accordance with the advice of the Council of Ministers is

(a) Article 53 (b) Article 74 (c) Article 75 (d) Article 77

Q. 9. The power of the President to require the Council of Ministers to reconsider its advice was inserted by the

(a) 42nd Amendment (b) 44th Amendment (c) 61st Amendment (d) 91st Amendment

Q. 10. The only ground for impeachment of the President is

(a) incapacity (b) violation of the Constitution (c) corruption (d) loss of confidence of Parliament

Q. 11. The electoral college for the Vice-President consists of

(a) both Houses of Parliament only (b) both Houses plus State Assemblies (c) the Rajya Sabha only (d) the Lok Sabha only

Q. 12. The Vice-President must be qualified for election as a member of the

(a) Lok Sabha (b) Rajya Sabha (c) either House (d) State Legislative Assembly

Q. 13. The cap on the size of the Council of Ministers was introduced by the

(a) 42nd Amendment (b) 44th Amendment (c) 91st Amendment (d) 101st Amendment

Q. 14. The Council of Ministers, including the Prime Minister, shall not exceed

(a) 10% of Lok Sabha strength (b) 15% of Lok Sabha strength (c) 20% of Lok Sabha strength (d) a fixed number of 60

Q. 15. A Minister who is not a member of either House for six consecutive months

(a) may continue indefinitely (b) ceases to be a Minister (c) must be nominated to the Rajya Sabha (d) becomes an ex officio member

Q. 16. The Governor is

(a) elected by the State Legislative Assembly (b) appointed by the President (c) elected by the people of the State (d) nominated by the Chief Minister

Q. 17. The Attorney General for India is appointed under

(a) Article 76 (b) Article 88 (c) Article 148 (d) Article 165

Q. 18. The Advocate General for a State is appointed by the

(a) President (b) Chief Justice of the High Court (c) Governor (d) Chief Minister

6.2 Level 2 - Understanding

Q. 19. In the Indian constitutional scheme, the President is the

(a) real executive with full discretion (b) formal or constitutional head, with the real executive power exercised by the PM and Council of Ministers (c) head of Government (d) presiding officer of Parliament

Q. 20. Nominated members of the Rajya Sabha

(a) vote in both the President's and Vice-President's elections (b) vote in the Vice-President's election but not the President's (c) vote in the President's election but not the Vice-President's (d) vote in neither

Q. 21. Under the 44th Amendment proviso to Article 74, the President may

(a) reject ministerial advice outright (b) require reconsideration once, and must then act on the advice tendered after reconsideration (c) refer the matter to the Supreme Court (d) dissolve the Council of Ministers

Q. 22. Article 74(2) provides that ministerial advice to the President

(a) must be published (b) shall not be inquired into in any court (c) must be tabled in Parliament (d) is subject to CAG audit

Q. 23. Which one of the following can the President do that the Governor cannot?

(a) Grant pardon for offences under State laws (b) Pardon a death sentence and pardon in Court Martial cases (c) Address the legislature (d) Appoint the head of Government

Q. 24. Which one of the following can the Governor do that the President cannot?

(a) Promulgate an Ordinance (b) Reserve a Bill for the consideration of the President (c) Grant pardons (d) Appoint judges

Q. 25. The word "Cabinet" appears in the Constitution

(a) nowhere (b) only in Article 352 (c) in Articles 74 and 75 (d) throughout Part V

Q. 26. The Council of Ministers is collectively responsible to the

(a) President (b) Rajya Sabha (c) House of the People (Lok Sabha) (d) Supreme Court

Q. 27. Article 163 gives the Governor

(a) no discretion whatsoever (b) express constitutional discretion in defined situations, which the President does not have (c) unlimited discretion (d) discretion only in financial matters

Q. 28. In *SR Bommai v Union of India (1994)*, the Supreme Court held that

(a) Article 356 is not justiciable (b) the Governor's satisfaction under Article 356 is subject to judicial review and the floor of the House is the proper test of majority (c) Article 356 may be used for political advantage (d) President's Rule is permanent once imposed

Q. 29. The Attorney General has the right to

(a) vote in Parliament (b) speak and take part in the proceedings of both Houses but not vote (c) preside over a joint sitting (d) attend Cabinet meetings as of right

Q. 30. The Solicitor General of India is

(a) a constitutional office under Article 76 (b) not a constitutional office; appointed to assist the Attorney General (c) elected by the Bar Council (d) a member of the Council of Ministers

Q. 31. Article 77 requires that all executive action of the Government of India be

(a) approved by Parliament in advance (b) expressed to be taken in the name of the President (c) signed personally by the President (d) countersigned by the Chief Justice

Q. 32. Under Article 164(1A), the minimum number of Ministers in a State is

(a) 6 (b) 10 (c) 12 (d) 15

Q. 33. Which States must have a Minister in charge of tribal welfare under the proviso to Article 164(1)?

(a) Assam, Nagaland, Manipur, Mizoram (b) Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha (c) Rajasthan, Gujarat, Maharashtra, Karnataka (d) Bihar, West Bengal, Uttar Pradesh, Punjab

6.3 Level 3 - Recruitment Test standard**Q. 34. Match List-I with List-II and select the correct answer using the code below:**

List-I	List-II
A. President's pardoning power	1. Article 74
B. Advice binding on the President	2. Article 72
C. Attorney General	3. Article 76
D. Governor's pardoning power	4. Article 161

(a) A-2 B-1 C-3 D-4 (b) A-1 B-2 C-3 D-4 (c) A-2 B-1 C-4 D-3 (d) A-4 B-1 C-3 D-2

Q. 35. Consider the following statements:

- 1 The President's electoral college includes elected members of State Legislative Assemblies.
- 2 The Vice-President's electoral college is confined to members of both Houses of Parliament.
- 3 Nominated members of the Rajya Sabha vote in the Vice-President's election.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 36. Which one of the following statements is not correct?

(a) The Governor holds office during the pleasure of the President (b) The Governor's normal term is five years (c) The Governor is elected by the members of the State Legislative Assembly (d) One person may be appointed Governor of two or more States

Q. 37. Consider the following statements about the impeachment of the President:

- 1 The only ground is violation of the Constitution.
- 2 A resolution requires a two-thirds majority of the total membership of the House.
- 3 Nominated members of the Rajya Sabha may participate in the impeachment even though they do not vote in the President's election.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 38. Consider the following statements about Article 75:

- 1 The Prime Minister is appointed by the President.
- 2 Other Ministers are appointed by the President on the Prime Minister's advice.
- 3 The Council of Ministers is collectively responsible to both Houses of Parliament.

Which of the above statements are correct?

(a) 1 and 2 only (b) 2 and 3 only (c) 1 and 3 only (d) 1, 2 and 3

Q. 39. A Gazette notification revising a parameter of the EPF Scheme is issued

(a) by the Central Board of Trustees in its own name (b) in the name of the President under Article 77, signed by an authorised officer of the Ministry (c) by the Prime Minister personally (d) by the Attorney General

Q. 40. The reason an APFC must understand that the President acts on ministerial advice is that

(a) the President personally decides Section 7A appeals (b) a Gazette notification issued in the President's name is in substance the Cabinet's decision, and it is binding on the employer the APFC assesses (c) the President appoints APFCs directly (d) the President chairs the Central Board of Trustees

7. Answers and Explanations

7.1 Level 1

Q	Ans	Explanation
1	b	Article 53 vests executive power of the Union in the President
2	b	Elected MPs plus elected MLAs of States and Delhi/Puducherry (70th Amendment 1992). Nominated members excluded
3	b	1971 census , until the first census after 2026 - the same freeze as Lok Sabha seats
4	c	35 years
5	b	5 years , re-eligible without limit
6	b	Article 72
7	c	Article 161
8	b	Article 74(1)
9	b	44th Amendment 1978 - the reconsideration proviso
10	b	Violation of the Constitution - the only ground
11	a	Both Houses of Parliament only - States have no say
12	b	Rajya Sabha - contrast the President, who must be qualified for the Lok Sabha

Q	Ans	Explanation
13	c	91st Amendment 2003
14	b	15 per cent of Lok Sabha strength
15	b	Ceases to be a Minister under Article 75(5)
16	b	Appointed by the President - not elected. The fundamental difference from the President
17	a	Article 76
18	c	Governor - Article 165

7.2 Level 2

Q	Ans	Explanation
19	b	Formal head; real power with PM and Council of Ministers. Both are constitutional executives at different tiers
20	b	Vice-President's election yes, President's no. The single most tested distinction between the two elections
21	b	Reconsideration once, then bound. The 44th Amendment codified the convention and closed off wider discretion
22	b	Shall not be inquired into in any court - protecting confidentiality of executive decision-making
23	b	Pardon a death sentence and pardon in Court Martial cases. The Governor can do neither
24	b	Reserve a Bill for the President's consideration under Article 200 - no Presidential equivalent exists
25	b	Only in Article 352 , inserted by the 44th Amendment, requiring the Cabinet's written recommendation for a National Emergency
26	c	Lok Sabha - Article 75(3). Not the Rajya Sabha
27	b	Express constitutional discretion in defined situations. Article 163(1)'s "except" clause has no Article 74 counterpart
28	b	Judicial review of the Governor's satisfaction; floor test as the only proper test of majority
29	b	Speak and participate but NOT vote - Article 88
30	b	Not a constitutional office. Only the Attorney General is, under Article 76
31	b	Expressed to be taken in the name of the President. Authentication rules under Art 77(2) decide who signs
32	c	12 - so small States retain a workable ministry
33	b	Chhattisgarh, Jharkhand, Madhya Pradesh, Odisha

7.3 Level 3

Q	Ans	Explanation
34	a	A-2 pardoning = Art 72; B-1 binding advice = Art 74; C-3 Attorney General = Art 76; D-4 Governor's pardon = Art 161
35	d	All three correct. These three facts together define the difference between the two elections
36	c	(c) is FALSE. The Governor is appointed by the President , not elected by the Assembly
37	d	All three correct. Note the asymmetry: nominated RS members do not vote in the election but do participate in impeachment
38	a	1 and 2 only. Statement 3 is wrong - collective responsibility is to the Lok Sabha alone under Article 75(3)
39	b	In the President's name under Article 77 , signed by an authorised officer. The CBT recommends; it does not notify in its own name
40	b	Because the notification, though in the President's name, is in substance the Cabinet's decision, and it binds the employer whose dues the APFC determines

8. One-Minute Revision

ONE-MINUTE REVISION · CHAPTER F1.6 - THE EXECUTIVE

THE DUAL STRUCTURE Art 53 vests executive power in the **PRESIDENT** · Art 74 binds him to ministerial advice · so the President is the **FORMAL** executive and the **PM + Council of Ministers** the **REAL** executive · both are constitutional executives at different tiers

PRESIDENT - ELECTION

- 1 **Art 54 electoral college: elected MPs of both Houses + elected MLAs of States AND Delhi/Puducherry** (70th Amdt 1992)
- 2 **NOMINATED MEMBERS DO NOT VOTE** · members of Legislative Councils do not vote
- 3 **Art 55: PR with single transferable vote**, secret ballot · value of votes computed for **uniformity among States and parity between MPs and MLAs**
- 4 **1971 CENSUS used until the first census after 2026** - same freeze as Lok Sabha seats
- 5 **Art 56 term 5 years**, re-eligible without limit · **Art 58 min age 35**, qualified for **LOK SABHA** membership
- 6 **Art 59**: no other office of profit; emoluments cannot be diminished during term

PRESIDENT - FIVE CATEGORIES OF POWER

- 1 **EXECUTIVE** - appoints PM, Ministers, AG, CAG, SC/HC judges, Governors, UPSC, CEC
- 2 **LEGISLATIVE** - summon/prorogue/dissolve LS · address Parliament · **nominate 12 to RS** · assent (Art 111) · **Ordinances (Art 123)**
- 3 **FINANCIAL** - **Money Bills need his recommendation** · Contingency Fund at his disposal
- 4 **JUDICIAL** - **Art 72 pardon**: Court Martial, Union law offences, and **DEATH SENTENCES**
- 5 **EMERGENCY** - Art 352 National · Art 356 President's Rule · Art 360 Financial (never proclaimed)

ART 74 - THE KEY PROVISION

- 1 **"shall act in accordance with such advice"**
- 2 **44th AMENDMENT 1978 proviso**: may require **RECONSIDERATION ONCE**, then **must** act on the advice tendered after reconsideration
- 3 **Art 74(2)**: advice **SHALL NOT BE INQUIRED INTO in any court**
- 4 **Real discretion survives in three situations**: appointing a PM in a hung Parliament · dismissing a PM who has lost confidence but won't resign · withholding or returning assent

IMPEACHMENT - Art 61 · ONLY GROUND: VIOLATION OF THE CONSTITUTION · charge by 1/4 members with 14 days' notice · **2/3 of TOTAL MEMBERSHIP** of each House · **NOMINATED RS MEMBERS PARTICIPATE** (though they don't vote in the election) · **elected MLAs do NOT** (though they do vote in the election) · **never used in Indian history**

VICE-PRESIDENT - Arts 63-71

- 1 **Electoral college: BOTH HOUSES OF PARLIAMENT ONLY** - States have no say
- 2 **NOMINATED MEMBERS DO VOTE** - the most tested distinction from the President's election
- 3 **Min age 35**, must be qualified for the **RAJYA SABHA**
- 4 **Tenure 5 years** · removal by RS resolution (majority of all then members) **agreed to by LS, no ground specified**, 14 days' notice
- 5 **Ex officio CHAIRMAN of the Rajya Sabha (Art 64) but NOT A MEMBER of it**
- 6 Acts as President during a vacancy; new President must be elected **within 6 months**; while acting he does not chair the RS and draws the President's emoluments

PRIME MINISTER AND COUNCIL OF MINISTERS - Art 75

- 1 **75(1)** PM appointed by President; other Ministers on PM's advice
- 2 **75(2)** hold office during President's pleasure
- 3 **75(3) COLLECTIVELY RESPONSIBLE TO THE LOK SABHA** (not the Rajya Sabha)
- 4 **75(5)** a Minister not a member of either House for **6 consecutive months** ceases to be a Minister
- 5 **75(1A) - 91st AMENDMENT 2003: total Ministers including PM $\leq$ 15% of Lok Sabha strength**
- 6 **Three tiers by convention: Cabinet Ministers · Ministers of State (with or without independent charge) · Deputy Ministers**
- 7 **THE WORD "CABINET" APPEARS IN THE CONSTITUTION ONLY IN ART 352** (44th Amdt) - excellent examination point
- 8 **The PM's resignation dissolves the WHOLE Council** - unique to his office
- 9 PM chairs **NITI Aayog, National Development Council, National Integration Council, Inter-State Council, National Water Resources Council**

GOVERNOR - Arts 153-162

- 1 **Art 155 APPOINTED BY THE PRESIDENT** by warrant - **NOT ELECTED** · **Art 156** 5 years but holds office during the President's pleasure
- 2 **Art 157 min age 35** · one person may be Governor of **two or more States** (7th Amdt 1956)
- 3 **Art 161 pardon** - State law offences only · **CANNOT pardon a DEATH SENTENCE, cannot pardon in Court Martial cases** - only the President can
- 4 **Art 200** - may assent, withhold, return, or **RESERVE THE BILL FOR THE PRESIDENT** - the distinctive Governor power with no Presidential equivalent
- 5 **Art 356** - reports failure of constitutional machinery
- 6 **Art 163(1)** - acts on advice "**except in so far as he is required to exercise his functions in his discretion**" - so **EXPRESS DISCRETION, unlike the President**
- 7 **Discretion situations:** reserving a Bill · recommending Art 356 · appointing a CM in a hung Assembly · dismissing a Ministry that has lost confidence · seeking information under Art 167 · administering an adjoining UT
- 8 **SR BOMMAI 1994:** Governor's satisfaction under 356 is **judicially reviewable**; the **FLOOR TEST** is the only proper test of majority; 356 cannot be used for political advantage · **NABAM REBIA 2016** further constrained discretion on summoning and dissolution

CHIEF MINISTER AND STATE COUNCIL - Arts 163-164

- 1 **164(1)** CM appointed by Governor; Ministers on CM's advice
- 2 **164(1A) - 91st Amdt: $\leq$ 15% of Assembly strength, MINIMUM 12**
- 3 **164(2)** collectively responsible to the **LEGISLATIVE ASSEMBLY**
- 4 **164(4)** 6-month rule as at the Union
- 5 **Proviso to 164(1): CHHATTISGARH, JHARKHAND, MADHYA PRADESH, ODISHA** must have a **Minister for TRIBAL WELFARE**

LAW OFFICERS

- 1 **Art 76 ATTORNEY GENERAL** - appointed by **President**, must be qualified to be a **SUPREME COURT JUDGE** · **right of audience in ALL courts** · **Art 88: may speak and participate in both Houses and committees but has NO VOTE** · **NOT a Cabinet member** · may practise privately but not against the Government
- 2 **SOLICITOR GENERAL and ASGs are NOT constitutional offices** - they assist the AG
- 3 **Art 165 ADVOCATE GENERAL** - appointed by **Governor**, qualified to be a **HIGH COURT JUDGE** · **Art 177** speaks in the State Legislature without voting

ART 77 AND YOUR DESK

- 1 **All executive action of the Government of India is expressed to be taken in the NAME OF THE PRESIDENT** · authentication rules under 77(2) decide who signs, so a Joint Secretary's signature is constitutionally the President's action
- 2 **The EPF interest rate chain: CBT recommends** (chaired by the **Union Labour Minister**) → **Ministry of Labour** processes → **Ministry of Finance** concurs on expenditure → **Cabinet** approves policy-significant changes → **Gazette notification in the President's name** → effective from the date specified
- 3 **The 8.25% for FY 2025-26 arrived exactly this way** · *this is why you must know that a notification in the President's name is in substance the Cabinet's decision, and binds the employer you assess*

9. Five-Minute Wall Sheet

FIVE-MINUTE WALL SHEET · CHAPTER F1.6 - THE EXECUTIVE

Art 53 vests power in PRESIDENT · Art 74 binds him to advice · FORMAL vs REAL executive
PRESIDENT: college = elected MPs + elected MLAs (+ Delhi/Puducherry) · NOMINATED DO NOT VOTE

PR-STV · 1971 census till 1st census after 2026 · 5 yrs · min 35 · qualified for LOK SABHA

Art 72 pardon: Court Martial + Union offences + DEATH SENTENCE

Art 74 proviso (44th Amdt 1978): RECONSIDER ONCE, then bound · 74(2) advice not inquirable

Impeachment Art 61: ONLY ground = VIOLATION OF CONSTITUTION · 2/3 of TOTAL membership · nominated RS DO participate · MLAs do NOT

VICE-PRESIDENT: college = BOTH HOUSES ONLY · NOMINATED MEMBERS DO VOTE · qualified for RAJYA SABHA · Chairman of RS but NOT a member · new President within 6 months

Art 75: (1) PM by President · (3) responsible to LOK SABHA · (5) 6-month rule · (1A) 15% cap (91st Amdt 2003)

"CABINET" appears ONLY in Art 352

PM's resignation dissolves the WHOLE Council

GOVERNOR: APPOINTED by President, NOT elected · pleasure of President · min 35 · may serve 2+ States

Art 161: State offences only · CANNOT pardon DEATH or Court Martial

Art 200: may RESERVE A BILL FOR THE PRESIDENT — no Presidential equivalent

Art 163: EXPRESS DISCRETION (unlike Art 74) · SR BOMMAI 1994 = floor test + judicial review of 356

Art 164(1A): 15% cap, MINIMUM 12 · Tribal Welfare Minister in CHHATTISGARH, JHARKHAND, MP, ODISHA

Art 76 AG: by President · SC-judge qualified · audience in ALL courts · Art 88 speaks but NO VOTE · not a Minister

SOLICITOR GENERAL is NOT a constitutional office

Art 165 AdvG: by Governor · HC-judge qualified · Art 177 speaks in State Legislature, no vote

Art 77: all executive action in the PRESIDENT'S NAME · authentication rules decide the signatory

EPF rate chain: CBT (Labour Minister) → Ministry of Labour → Finance concurrence → Cabinet → Gazette in President's name